



POLICE DEPARTMENT

January 30, 2026

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032800
Police Officer Stefan Weaver	:	
Tax Registry No. 965901	:	

Patrol Borough Brooklyn North Community Response Team:

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Seema Iyer, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

CHARGES AND SPECIFICATIONS

1. Said Police Officer Stefan Weaver, while on duty and assigned to Patrol Borough Brooklyn North Specialized Units, on or about June 12, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Police Officer Weaver wrongfully placed a Department vehicle in a position to be struck by another vehicle, causing physical injury to the occupant of said vehicle.

A.G. 304-06, Page 1, Paragraph 2

PROHIBITED CONDUCT

P.G. 221-01

FORCE GUIDELINES

P.G. 221-15

VEHICLE PURSUITS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 23, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department called Sergeant Thomas Little and introduced Body-Worn Camera (“BWC”) footage and video surveillance of the incident, as well as photographs of Complainant’s injury. Respondent called Officer Timur Kim as a witness, offered Complainant’s hearsay statement in evidence and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find Respondent Guilty and recommend a penalty of 10 suspension days and 10 vacation days.

ANALYSIS

The following facts are undisputed. On June 12, 2024, Respondent and his partners, Officers Kim and Huaman, were assigned to a conditions detail within the confines of the 75 Precinct. They were in an unmarked RMP driven by Respondent when they encountered

Complainant, who was traveling on a dirt bike¹, in the opposite direction of them on Jamaica Avenue. Upon seeing Complainant, approximately three blocks away, driving recklessly and committing various traffic infractions, Respondent decided to effectuate a traffic stop. As the RMP got closer to Complainant's dirt bike, Respondent activated the turret lights to signal to Complainant that he was being stopped. A few seconds later, Complainant collided with the RMP causing him to be propelled from his dirt bike and sustain injuries.

The issue in dispute in this case is whether the tactic used by Respondent to effectuate the stop, as the operator of the unmarked RMP, was improper thereby constituting an unlawful use of force. The Department contends that Respondent placed the RMP in a position to be struck by Complainant's dirt bike. They further argue that it was the Respondent's improper maneuvering of the RMP, not Complainant's actions, that contributed to the collision. Respondent asserts that he did not intentionally place the RMP in a position to be struck and that he did everything he could to avoid this accident, and that it was Complainant's erratic driving that led to the collision.

Sergeant Thomas Little, a member of Internal Affairs Bureau ("IAB") Group 54, specializes in investigating vehicle pursuits and any allegation of "level two or level three use of force." He was assigned to investigate Respondent's case. Sergeant Little provided a summary of what transpired on the date of the incident, based on his review of video evidence and interviews with witnesses.

According to Sergeant Little's investigation, on the day of the incident, Respondent and his partners were in the RMP at a stationary position on Jamaica Avenue when they observed a

¹ The terms "dirt bike" and "moped" were used interchangeably at various points during the hearing by different parties. While dirt bikes and mopeds are different types of motorized vehicles, the type of vehicle was not in dispute at this hearing, so the Tribunal used the term "dirt bike" to describe the vehicle operated by Complainant.

dirt bike that was approaching them. Based upon their observations of Complainant on the dirt bike driving recklessly, the officers decided to stop him. Department Exhibit 3 at 20:37:31 shows that the RMP driven by Respondent was traveling westbound on Jamaica Avenue, and the dirt bike was traveling in the designated lane for eastbound traffic on Jamaica Avenue. As the RMP got closer to the dirt bike, Respondent crossed over the double yellow line separating eastbound and westbound traffic so that the driver's side tires were straddling both lanes. The Complainant on the dirt bike then veered to his left, towards the center of the street, in what appeared to be an attempt to evade a collision. Department Exhibit 2 shows that Respondent turned the steering wheel of the RMP to mirror the direction in which Complainant on the dirt bike was turning, just before the head-on collision. (Tr. 18-22)

Sergeant Little testified that, as an investigator in the IAB group that reviews and analyzes vehicle pursuits, he is familiar with the proper tactics that should be employed when conducting vehicle stops. He explained that officers are trained to not place their vehicle in a position in where it can be struck. While Sergeant Little did not believe Respondent intentionally caused the collision, he maintained that Respondent crossing over into a lane with oncoming traffic to effectuate a car stop was an impermissible maneuver. Sergeant Little asserted that at the moment of impact, the front of the RMP was in Complainant's lane of travel. Respondent only turned back into his designated lane of travel when Complainant maneuvered the dirt bike towards the center of the double yellow line that divided the road. (Tr. 23-24, 27, 29)

Sergeant Little further testified that Complainant was placed in custody immediately after the collision. Complainant was taken to the hospital for injuries he sustained as a result of the impact. Sergeant Little described the injuries as "minor lacerations and abrasions to his extremities." (Tr. 28)

On cross-examination, Sergeant Little acknowledged that when the initial call log came into IAB, the member of service (“MOS”) that initially reviewed the officers’ BWC reported that it was Complainant who struck the front of the RMP operated by Respondent. Sergeant Little also asserted that Respondent was not suspended or modified because of this incident and that no change in duty status was recommended for Respondent. Additionally, Sergeant Little testified that he conferred with the Kings County District Attorney’s Office Police Accountability Unit, and they declined to take action against Respondent. (Tr. 31-33)

Respondent testified that he has been a member of the Community Response Team (“CRT”) of the 81 Precinct since 2023. Respondent explained that his duties as part of the CRT include addressing quality of life conditions and enforcing vehicular and traffic violations such as illegal dirt bikes, ATVs, dirt bikes, and unregistered “ghost vehicles.” He added that from time to time, he is deployed to neighboring precincts, as needed, to address similar conditions. (Tr.48-49)

On June 12, 2024, Respondent was working in his capacity as a member of the CRT within the confines of the 75 Precinct to focus on the Highland Park area because there had been an uptick in crimes involving ATVs, dirt bikes, and dirt bikes. That day, Respondent was the operator of an unmarked radio motor patrol car (“RMP”), and he was working with two partners, Officers Kim and Huaman. While Respondent was in the vicinity of Jamaica Avenue and Richmond Street, he observed Complainant on a dirt bike approximately two to three blocks away, driving recklessly and committing various traffic infractions. He recollected that Complainant was “doing a wheelie...swerving from lane to lane...driving at a high rate of speed...not wearing a helmet.” (Tr. 51) Respondent claimed that although he was intending on taking police action, he was not “pursuing” this Complainant. He stated: “From my

understanding, a vehicle pursuit -- I have to be following a car, driving behind the car, trying to apprehend that car... I was not in the vehicle pursuit because the dirt bike was coming directly towards my direction.” (Tr. 51-52)

Respondent testified that when he first noticed Complainant, Respondent was driving in the westbound lane, and Complainant was on swerving in and out of the eastbound and westbound lanes. As he got closer, Respondent also observed that Complainant’s rate of speed increased as he could hear the engine of the dirt bike revving up. Respondent asserted that he turned his lights and siren on because he wanted to alert Complainant of his presence in hopes that he would stop and avoid a collision. Respondent claimed that because of Complainant’s reckless driving, he could not predict which lane of travel he would be in as they got closer, so Respondent “positioned the RMP in the middle of the street so [he] could give him space to pass on either side.” (Tr. 54, 58)

Respondent acknowledged that in Department’s Exhibit 3, it appears as though he was maneuvering the steering wheel back and forth, but he maintained that he was trying to move the RMP out of Complainant’s way. Respondent elaborated, saying “So from him going eastbound to westbound lane, I’m constantly trying to switch over to avoid him. It’s going to take me a couple of moments to process which direction and then turn the steering wheel and anticipate where he’s going to go, not to be in his way.” (Tr.59-60)

Respondent testified that after the collision, he placed Complainant under arrest and offered him medical attention. Respondent recalled that Complainant was complaining of pain and that he had scratches on his legs. Respondent also recollected that while being processed at the precinct, Complainant apologized several times for the accident. According to Respondent,

Complainant admitted that he lost control of the bike and that is what caused him to hit the RMP.
(Tr. 60)

Officer Timur Kim, who was one of Respondent's partners at the time of the incident, corroborated Respondent's version of events. Officer Kim testified that on the date in question, he was seated in the front passenger seat of the RMP operated by Respondent. He testified that from his vantage point in the RMP, he made the same observations as Respondent regarding the Complainant on the dirt bike. Officer Kim stated that he and his partners, including Respondent, conferred for a moment and agreed they would be effectuating a stop of Complainant.

According to Officer Kim's trial testimony, at the time they decided to take police action, he saw Complainant angle his dirt bike toward the passenger side of the RMP and attempt to go around the car in the "wrong lane." He also heard Complainant accelerate as he got closer. Officer Kim further testified that he believed Respondent maneuvered the vehicle in the manner he did to avoid the collision. (Tr. 102)

Complainant was interviewed by IAB in connection with their investigation of this incident. The audio version of this interview was received in evidence as Respondent's Exhibit B. Complainant testified that he was riding down the right side of the lane when he saw the officers turn on their lights and noticed that they were "dipping" into his lane. As he attempted to slow down, he explained that his back tire was worn out, causing him to slide and crash directly into the police vehicle. Complainant recalled that cars were passing by on the left side of the street, and when the officers activated their lights, he had no time to react. (Respondent Ex. B at 0:00-01:20)

Complainant elucidated that he was riding his bike with the flow of traffic in his lane while the officers were driving in the opposite lane. However, at the point of impact, the officers

came into his lane at an angle. He specifically described the crash as happening because the officers “cut him off and crossed the yellow line.” Due to the impact, Complainant recounted, “[I] flew so far that [I] was almost by the side of the sidewalk.” Complainant reiterated, “They simply just cut me off.” (Respondent Ex. B 01:21-03:22)

Complainant recalled that the officer’s car was grey, and that only the front two lights were activated after they moved into his lane. He explained that he was already slowing down but pressed the brake even harder upon seeing them. However, he stated, “[I] couldn’t slow down fast enough” since he was driving a manual motorcycle, which requires a process to slow down. He specifically remembered trying to move away from the car, stating, “It’s like they were following me,” and that the car came to a halt in his lane at an angle, stating “That’s pretty much it. I ran right into them.” (Respondent Ex. B at 04:29-05:40)

Complainant asserted that after he ran into the front of the police car, the license plate came off the vehicle. He sustained injuries to his legs and felt pain in his left knee and his back. He also mentioned pain in his head and irritation in his knuckles. Additionally, Complainant testified that he sustained lacerations on his knee. (Respondent Ex. B at 05:41-06:49)

Video footage from Respondent's BWC does not capture Complainant’s reckless driving in the moments before the impact. The footage, however, shows Respondent turning his steering wheel and angling his RMP to the left, and a second later, abruptly cutting the wheel to the right and colliding Complainant. (Department Ex. 2 at 00:48-00:52) As Respondent emerges from his vehicle, Complainant can be seen on the ground on the passenger side of the RMP, and Respondent immediately states: “Yo! What is wrong with you, bro?” (Id. at 01:01) A few minutes later, after Complainant was placed in handcuffs, he spontaneously stated: “You guys did not stop. Are you kidding me? If you would have stopped, I would not have hit you

guys...You guys hit me!” (Id. at 03:57) The photographs received in evidence show damage to the front of the RMP. (Department Ex. 4) Additional photographs show the injuries sustained by Complainant as a result of the collision. (Department Ex. 5A & 5B)

Respondent is charged with the wrongful use of force in that he placed a Department vehicle in a position to be struck by another vehicle, causing injury to Complainant. Section 221-15 of the Patrol Guide provides a list of prohibited tactics that should not be used in a vehicle stop, including “placing a moving Department vehicle in a position to be struck by the pursued vehicle.” The rule is grounded in important safety concerns. Placing a moving police vehicle in a position where it is likely to be struck by a pursued vehicle is a prohibited tactic due to the high risk it poses to the safety of all involved parties: police officers, the suspect/Complainant, and the general public. Such maneuvers create unpredictable and often catastrophic outcomes, which conflict with the Department’s primary objective of preserving life and protecting property. Moreover, collisions involving deliberate impact significantly increase the likelihood of injuries, which is what happened here.

The Department has the burden of proving, by a preponderance of the credible evidence, that Respondent wrongfully used force by striking Complainant with a Department vehicle. After carefully listening to the witnesses and reviewing the video evidence, I find that the Department has met its burden. While I credit the testimony of Respondent and that of his partner that they observed the dirt bike being driven in a reckless manner, in viewing the video evidence, it is apparent that the manner in which Respondent maneuvered the Department vehicle, was against Guidelines. Regardless of intent, the tactic employed by Respondent constitutes wrongful use of force, which was not justified under the circumstances of this case.

As set forth in Patrol Guide Section 221-01, force may be used by a uniformed member of service when it is “reasonable to ensure the safety of a member of the service or a third person or otherwise protect life....” The test of reasonableness requires careful attention to the facts and circumstances of each particular case and must allow for a police officer’s frequent need to make “split-second” judgments about how much force is necessary “in circumstances that are tense, uncertain, and rapidly evolving.” *Graham v. Connor*, 490 U.S. 386 (1989), citing *Terry v. Ohio*, 392 U.S. 1 (1968). As the driver of an RMP, Respondent was required to exercise a duty of care that did not create an unreasonable risk of harm to himself or others. He breached that duty by placing the RMP in the middle of the street and then turning the steering wheel in the direction of Complainant when he attempted to evade the RMP. Given the immediate, foreseeable, and injurious consequences of placing the Department vehicle in a position to be struck by Complainant, Respondent’s choice to use this type of force was excessive and unjustified. Accordingly, I find Respondent guilty of the charged misconduct.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on April 25, 2018, has been found guilty of the improper use of non-deadly force resulting in injury. According to the Disciplinary Guidelines, the presumptive penalty for this misconduct is ten (10) suspension days and ten (10)

penalty days. The Department Advocate's Office recommended a penalty of 15 suspension days and 15 penalty days, based upon what they believe are aggravating factors including Respondent's placement of the RMP in the middle of the road and steering the RMP toward Complainant. While this Tribunal recognizes the serious nature of Respondent's conduct, I disagree with the Department's assessment of aggravating factors.

On the date of the incident, Respondent was attempting to effectuate a lawful vehicle stop of a Complainant driving recklessly through a residential neighborhood. Respondent's actions were not nefarious or designed to intentionally collide with Complainant. Moreover, Complainant's injuries, according to his own testimony, were minor. However, Respondent's testimony evinced a misguided concept of the proper tactics that should be employed during a vehicle stop. Therefore, it is the view of this Tribunal that imposing the presumptive penalty strikes the proper balance between holding Respondent accountable for his poor judgement and the difficulty of the split-second decision he had to make on that day.

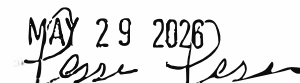
Accordingly, it is recommended that Respondent be suspended for 10 days and forfeit 10 vacation days.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

MAY 29 2026

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER STEFAN WEAVER
TAX REGISTRY NO. 965901
DISCIPLINARY CASE NO. C-032800

Respondent was appointed to the Department on April 25, 2018. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2023, 2024, and 2025. He has been awarded eleven medals for Meritorious Police Duty and two medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials